

2026 USPS election-mail litigation

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Status: **Draft v15** — prepared as background material for attorney review. **This document is NOT legal advice and does not assert that any specific countersuit is viable.** It summarizes public-record research only; whether any of it supports an actual claim is a legal judgment for counsel to make.

Prepared by: Ralph Burton Harris III.

Prepared for attorney review — attorney identity confirmed. This material is intended for review by **William K. “Bill” Kirk, President of Washington Gun Law** (Spokane, WA), who hosts the associated “Washington Gun Law” YouTube channel. Confirmed directly via his firm bio:¹

- 20-time recipient of Washington State’s Super Lawyer award (top 1% of attorneys in the state).
- Graduate of Washington State University and Gonzaga University School of Law.
- Former Spokane County and King County Prosecuting Attorney; in private practice defending the accused, including self-defense/lawful-use-of- firearm cases, since 2000.
- Has taught attorneys in trial practice in 26 states and lectures nationally on Second Amendment issues.

Earlier drafts of this report (v3–v4) carried an unresolved identity question, since the user’s initial description (“Kirk, who heads the 2nd Amendment Institute”) did not match either of the two “Kirk” candidates initially investigated: Second Amendment Institute (led by Tyler Yzaguirre, not a Kirk) and Cooper & Kirk, PLLC (Michael W. Kirk, a different attorney). The user then supplied the direct source link (washingtongunlaw.com) that resolved it. **Washington Gun Law / William K. Kirk is the confirmed, final match** — consistent with the user’s earlier context clue (“Washington state executives”), since Mr. Kirk practices in Washington State. See² for the full audit trail of ruled-out candidates.

¹Attorney Biography, William K. Kirk, Washington Gun Law, <https://www.washingtongunlaw.com/william-k-kirk-2> (last visited Sept. 30, 2026) (confirming: President of Washington Gun Law, Spokane, Wash.; host of the “Washington Gun Law” YouTube channel; twenty-time Washington State Super Lawyer; J.D., Gonzaga University School of Law; B.A., Washington State University; former Spokane County and King County Prosecuting Attorney; in private practice since 2000).

²Two other “Kirk” candidates were investigated and ruled out before the correct match was found. *First*, the Second Amendment Institute (“SAI”), a Washington, D.C.-based 501(c)(3) founded in 2016, is led by founder/president Tyler Yzaguirre, not a Kirk, per SAI’s website and its attorneys of record in *Yzaguirre v. District of Columbia*, No. 1:24-cv-01828 (D.D.C.). *Second*, Cooper & Kirk, PLLC, a Washington, D.C. constitutional-litigation firm co-founded by Michael W. Kirk with a Second Amendment practice area, <https://www.cooperkirk.com/practice-areas/constitution-second-amendment/> (last visited Sept. 30, 2026), is led by a different person from William K. Kirk, and the firm is not styled an “institute.”

Assessment note (not independently verified): Mr. Kirk’s credentials above come from his own firm’s bio page, not yet cross-checked against an independent source (e.g., the Washington State Bar Association’s public attorney lookup, or superlawyers.com’s own listing page). Nothing found in this research is a red flag, but independent confirmation of bar standing would be a reasonable step before relying on this report in front of him.

Correction note (v2): v1 of this report searched for “RNC Services, Inc.” and found no matches anywhere. The user subsequently clarified the intended name was “**DNC Services, Inc.,**” a.k.a. the **Democratic National Committee**. This version re-runs the relevant searches under the corrected name. The DNC’s actual, long-standing formal corporate name is “**DNC Services Corporation**” (not “DNC Services, Inc.”) — see Part 3a below.

Source documents. The complaint, related-case complaints, and the underlying Federal Register rule discussed below have been downloaded in full and are available locally in sources/, so this report and any future drafting do not depend on the documents remaining available online.

1. **Civil RICO** (18 U.S.C. §§ 1961–1968) lets a private plaintiff who was injured “in [their] business or property” by a pattern of racketeering activity sue for treble damages and attorney’s fees.³ It is a tort-like private right of action layered on top of what is usually thought of as a criminal statute.
2. **Qui tam suits** under the federal False Claims Act (31 U.S.C. §§ 3729–3733) are a structurally different tool: a private “relator” sues *on behalf of the government* over false claims for government money, the government can intervene and take over the case, and the relator keeps a statutory cut (15–30%) of any recovery.⁴ Civil RICO and qui tam are often confused because both let ordinary citizens act as private enforcers, but they protect different interests (private business/property vs. the public fisc) and pay out differently (treble damages to the plaintiff vs. a bounty share of a government recovery).
3. The most significant USPS-related case currently in the news is **State of California v. United States Postal Service**, D. Mass. No. 1:26-cv-13917, filed August 26, 2026, before Judge Indira Talwani.⁵ It is a multi-state challenge (California, Washington, and roughly two dozen other states, D.C., and several cities/

³18 U.S.C. § 1964(c) (2018) (civil RICO private right of action, treble damages and attorney’s fees); *id.* §§ 1961–1963 (definitions and criminal provisions incorporated by reference).

⁴31 U.S.C. §§ 3729–3733 (2018) (False Claims Act); *id.* § 3730(b) (qui tam filing under seal; government election to intervene); *id.* § 3730(d) (relator’s share of 15–25% with intervention, 25–30% without); *id.* § 3730(h) (anti-retaliation provision).

⁵Docket, *California v. U.S. Postal Serv.*, No. 1:26-cv-13917 (D. Mass. filed Aug. 26, 2026) (Talwani, J.), *available at* <https://www.courtlistener.com/docket/74701505/state-of-california-v-united-states-postal-service/> (last visited Sept. 30, 2026).

counties) to USPS Board of Governors changes and mail-ballot handling ahead of the 2026 midterms. The Washington Attorney General’s Office is one of the filing offices.⁶ **This case is pled as an Administrative Procedure Act / Voting Rights Act matter (“441 Civil Rights: Voting”), not as a civil RICO or qui tam action** — nothing in the public docket metadata indicates RICO claims.⁷

4. The user’s corrected reference, “**DNC Services, Inc.,**” is the user’s name for the Democratic National Committee. The DNC’s actual, long-established formal corporate name — confirmed across multiple federal court dockets going back decades — is “**DNC Services Corporation,**” not “DNC Services, Inc.”⁸ However, **no connection between DNC Services Corporation, Washington state executives, and a racketeering (RICO) complaint tied to the 2026 USPS election-mail case could be found** in CourtListener’s national case-law/RECAP index or in Google News.⁹ DNC Services Corporation does not appear in the party list for *California v. USPS* (1:26-cv-13917) retrieved in this research pass.¹⁰ This is flagged explicitly under “Unverified items” rather than guessed at.
5. Because of the gaps in (4), this document is organized as: a clean explainer of civil RICO vs. qui tam (usable regardless of the specific case), what is actually confirmed about the 2026 USPS case, and a short list of concrete next steps to close the remaining gaps.

⁶*Id.* (party list identifying the State of Washington and the State of California as plaintiffs, and Doug Tulino, David Steiner, Ronald Stroman, Amber McReynolds, Daniel Tangherlini, and Derek Kan as named USPS-affiliated defendants).

⁷*Id.* (docket reporting nature-of-suit code “441 Civil Rights: Voting” and cause of action “28:2201 Constitutionality of State Statute(s)”; no RICO-specific nature-of-suit code, which would read “470 RICO,” appears on the docket).

⁸*See, e.g., Wilson v. DNC Servs. Corp.*, No. 1:17-cv-00730 (D.D.C.), *available at* <https://www.courtlistener.com/opinion/4665158/wilson-v-dnc-services-corporation/> (last visited Sept. 30, 2026) (one of approximately twenty reported decisions confirming “DNC Services Corporation” as the Democratic National Committee’s long-used formal corporate name).

⁹Searches of CourtListener’s opinion database for “DNC Services, Inc.,” “DNC Services Corporation,” and “DNC Services Corporation” combined with “Washington” and “racketeering” returned no case tying the DNC to a Washington-state racketeering complaint; the sole racketeering-adjacent result was the unrelated campaign-finance action *Meng v. Schwartz*, 305 F. Supp. 2d 49 (D.D.C. 2004). Contemporaneous news searches for “DNC Services” RICO Washington and “Democratic National Committee” racketeering lawsuit 2026 likewise returned no matching results.

¹⁰*Id.* (party list identifying the State of Washington and the State of California as plaintiffs, and Doug Tulino, David Steiner, Ronald Stroman, Amber McReynolds, Daniel Tangherlini, and Derek Kan as named USPS-affiliated defendants).

Confidence assessment

Claim	Confidence	Basis
Civil RICO elements, remedies, statute of limitations	High	Direct statutory text and well-settled case law ¹¹
Qui tam / FCA mechanics	High	Direct statutory text ¹²
Existence, docket number, filing date, judge, and parties of <i>California v. USPS</i>	High	CourtListener RECAP metadata, pulled directly from the docket record ^{13,14}
That case is voting-rights/APA, not RICO	High (confirmed)	Full 53-page complaint retrieved and read; pleads seven causes of action (separation of powers, APA, three ultra vires theories, Voting Rights Act, Privacy Act) — no RICO or FCA count, and the DNC is not a party in any capacity ¹⁵
The DNC’s formal legal name is “DNC Services Corporation”	High	Confirmed across multiple federal court captions (e.g., <i>Wilson v. DNC Services Corporation</i> , D.D.C.) ¹⁶
DNC Services Corporation’s connection to Washington state executives / a RICO complaint / the 2026 USPS case	Unverified	No hits in CourtListener full-text RECAP/opinion search or Google News combining these terms ¹⁷
Whether a <i>separate</i> , smaller state-court RICO or qui tam suit naming the DNC exists	Unknown	State trial court filings (including Washington Superior Courts) are generally not indexed by CourtListener/PACER and were not searched by state-specific tools in this pass

¹¹ 18 U.S.C. § 1964(c) (2018) (civil RICO private right of action, treble damages and attorney’s fees); *id.* §§ 1961–1963 (definitions and criminal provisions incorporated by reference).

Key assumptions made: (1) I assumed “RICCO” in the original query was a misspelling of “RICO” (the Racketeer Influenced and Corrupt Organizations Act), based on the user’s own follow-up clarification (“racketeering and criminal activity”). (2) Per the user’s correction, “RNC Services, Inc.” in v1 was a misstatement of “DNC Services, Inc.”, meaning the Democratic National Committee. If either assumption is wrong, the research below does not apply and should be redone.

Part 1 — Civil RICO, explained

What it is

RICO was enacted in 1970 primarily as an organized-crime prosecution tool, but Congress also created a private civil cause of action in 18 U.S.C. § 1964(c): “Any person injured in his business or property by reason of a violation of section 1962 of this chapter may sue therefor in any appropriate United States district court.”¹⁸

Elements a civil RICO plaintiff must plead

1. An “enterprise” — an individual, partnership, corporation, association, or other legal entity, or a group of individuals associated in fact (even if not a legal entity).¹⁹
2. A “pattern of racketeering activity” — at least two acts of “racketeering activity” (a defined list of federal and state crimes, including mail fraud, wire fraud, bribery, extortion, money laundering, and dozens of others) within a 10-year period, that are related and amount to or pose a threat of continued criminal activity (“relatedness” and “continuity”).²⁰

¹²31 U.S.C. §§ 3729–3733 (2018) (False Claims Act); *id.* § 3730(b) (qui tam filing under seal; government election to intervene); *id.* § 3730(d) (relator’s share of 15–25% with intervention, 25–30% without); *id.* § 3730(h) (anti-retaliation provision).

¹³Docket, *California v. U.S. Postal Serv.*, No. 1:26-cv-13917 (D. Mass. filed Aug. 26, 2026) (Talwani, J.), available at <https://www.courtlistener.com/docket/74701505/state-of-california-v-united-states-postal-service/> (last visited Sept. 30, 2026).

¹⁴*Id.* (party list identifying the State of Washington and the State of California as plaintiffs, and Doug Tulino, David Steiner, Ronald Stroman, Amber McReynolds, Daniel Tangherlini, and Derek Kan as named USPS-affiliated defendants).

¹⁵Complaint, *California v. U.S. Postal Serv.*, No. 1:26-cv-13917 (D. Mass. filed Aug. 26, 2026) (53 pages), available at <https://storage.courtlistener.com/recap/gov.uscourts.mad.305406/gov.uscourts.mad.305406.1.0.pdf> (last visited Sept. 30, 2026). A full-text search of the extracted complaint for “DNC,” “Democratic National Committee,” “RICO,” “racketeer,” “qui tam,” and “False Claims” returned zero matches.

¹⁶See, e.g., *Wilson v. DNC Servs. Corp.*, No. 1:17-cv-00730 (D.D.C.), available at <https://www.courtlistener.com/opinion/4665158/wilson-v-dnc-services-corporation/> (last visited Sept. 30, 2026) (one of approximately twenty reported decisions confirming “DNC Services Corporation” as the Democratic National Committee’s long-used formal corporate name).

¹⁷Searches of CourtListener’s opinion database for “DNC Services, Inc.,” “DNC Services Corporation,” and “DNC Services Corporation” combined with “Washington” and “racketeering” returned no case tying the DNC to a Washington-state racketeering complaint; the sole racketeering-adjacent result was the unrelated campaign-finance action *Meng v. Schwartz*, 305 F. Supp. 2d 49 (D.D.C. 2004). Contemporaneous news searches for “DNC Services” RICO Washington and “Democratic National Committee” racketeering lawsuit 2026 likewise returned no matching results.

¹⁸18 U.S.C. § 1964(c) (2018) (civil RICO private right of action, treble damages and attorney’s fees); *id.* §§ 1961–1963 (definitions and criminal provisions incorporated by reference).

¹⁹18 U.S.C. § 1961(4) (defining “enterprise”); *id.* § 1961(5) (defining “pattern of racketeering activity” to require at least two acts within ten years); *H.J. Inc. v. Nw. Bell Tel. Co.*, 492 U.S. 229 (1989) (establishing the relatedness-plus-continuity test for a RICO “pattern”).

3. **Conduct** of the enterprise’s affairs **through** that pattern (§ 1962(c)), or investment of racketeering proceeds in an enterprise (§ 1962(a)), or acquisition/maintenance of an interest in an enterprise through racketeering (§ 1962(b)), or **conspiracy** to do any of the above (§ 1962(d)).
4. **Injury to business or property** proximately caused by the RICO violation (not personal injury, and not a purely derivative injury) — this proximate-cause requirement, from *Holmes v. Securities Investor Protection Corp.* (1992) and *Anza v. Ideal Steel Supply Corp.* (2006), is one of the most common grounds for dismissal of civil RICO complaints.²¹

Remedies

Treble (3x) actual damages, plus costs and reasonable attorney’s fees — a substantial fee-shifting incentive that (along with contingency-fee practice) is what makes civil RICO attractive to plaintiffs’ counsel in commercial disputes, even where the underlying conduct looks more like ordinary fraud or breach of contract.²²

Statute of limitations

Four years, borrowed by the courts from the Clayton Act, running from when the plaintiff knew or should have known of the injury (discovery rule), subject to circuit splits on the “separate accrual” question for later injuries from the same pattern.²³

Why courts are skeptical of civil RICO claims

Because of the treble-damages/fee-shifting exposure and the stigma of being labeled a “racketeer,” federal courts apply RICO’s elements strictly and dismiss a large share of civil RICO complaints at the pleading stage, especially where the “pattern” element collapses into what is really a single fraudulent scheme or an ordinary commercial dispute dressed up in RICO language.²⁴ Many federal districts also have local rules requiring a detailed “RICO case statement” before discovery can proceed.

²⁰18 U.S.C. § 1961(4) (defining “enterprise”); *id.* § 1961(5) (defining “pattern of racketeering activity” to require at least two acts within ten years); *H.J. Inc. v. Nw. Bell Tel. Co.*, 492 U.S. 229 (1989) (establishing the relatedness-plus-continuity test for a RICO “pattern”).

²¹*Holmes v. Sec. Inv’r Prot. Corp.*, 503 U.S. 258 (1992) (requiring proximate cause for civil RICO standing); *Anza v. Ideal Steel Supply Corp.*, 547 U.S. 451 (2006) (reaffirming the direct-injury/proximate-cause requirement and rejecting derivative-injury RICO theories).

²²18 U.S.C. § 1964(c) (2018) (civil RICO private right of action, treble damages and attorney’s fees); *id.* §§ 1961–1963 (definitions and criminal provisions incorporated by reference).

²³*Rotella v. Wood*, 528 U.S. 549 (2000) (holding that civil RICO borrows the Clayton Act’s four-year limitations period under a discovery-of-injury accrual rule).

²⁴*Holmes v. Sec. Inv’r Prot. Corp.*, 503 U.S. 258 (1992) (requiring proximate cause for civil RICO standing); *Anza v. Ideal Steel Supply Corp.*, 547 U.S. 451 (2006) (reaffirming the direct-injury/proximate-cause requirement and rejecting derivative-injury RICO theories).

Part 2 – Qui tam (False Claims Act) suits, compared

	Civil RICO	Qui tam (False Claims Act)
Who is protected	The plaintiff's own business or property	The federal (or a state) treasury
Who sues	The injured private party, in their own name and interest	A private "relator," nominally <i>on behalf of the United States</i> (case caption is <i>U.S. ex rel. [Name] v. [Defendant]</i>)
Government's role	None — purely private litigation	Complaint is filed under seal; DOJ investigates and decides whether to intervene (take over the case) or decline (relator can proceed alone) ²⁵
What triggers liability	A pattern of at least two predicate crimes from RICO's list, through an enterprise	Knowingly submitting (or causing submission of) a false or fraudulent claim for payment to the government, or making a false record/statement material to such a claim ²⁶
Damages	Treble actual damages to the injured plaintiff	Treble damages to the government, plus per-claim civil penalties; relator receives 15–25% of recovery if the government intervenes, 25–30% if it doesn't ²⁷
Retaliation protection	None built into the statute itself	Explicit anti-retaliation provision, 31 U.S.C. § 3730(h), letting whistleblower-employees sue for reinstatement/back pay
Typical fact pattern	Business competitors, fraud schemes, organized-crime-adjacent commercial disputes	Government contractors/grantees/healthcare providers overbilling or misrepresenting compliance to get paid by federal programs

Overlap in practice: the same underlying conduct — e.g., a scheme by a government contractor to defraud a federal agency — can sometimes support *both* a qui tam FCA claim (because the defendant billed the government falsely) *and* a civil RICO claim (because mail fraud/wire fraud used to execute that billing scheme count as RICO predicate acts), which is why sophisticated plaintiffs sometimes plead them together. They remain legally distinct causes of action with different plaintiffs-in-interest, different procedural postures (qui tam is filed under seal; RICO is not), and different recovery mechanics.

Many states, including **Washington**, have their own analogous state false claims statutes (Washington’s is limited — it lacks a general state FCA outside Medicaid — see “Unverified items” for why this matters to the original question).²⁸

Part 3 — The 2026 USPS election-mail litigation

Case status update (reported, not yet independently confirmed via docket)

A Sept. 10, 2026 local news report quotes King County (WA) Elections’ communications manager stating that, “[m]ost recently, on Sept. 4, a federal judge handed down a preliminary injunction to the U.S. Postal Service, preventing it from enacting new rules that would tighten mail-in voting requirements across the country.”²⁹ **This is reported via a news source quoting a county election official, not yet independently confirmed against the docket’s actual order** (CourtListener’s search API did not surface the specific order text in this pass; the docket’s dateTerminated field is still null, consistent with the case remaining active rather than fully resolved, which a preliminary injunction — as opposed to a final judgment — would be). If accurate, this means the rule discussed throughout this Part and Part 4 was preliminarily enjoined roughly two weeks after this report’s Part 3 research pass, before final resolution on the merits. This should be confirmed directly against the docket before relying on it.

²⁵31 U.S.C. §§ 3729–3733 (2018) (False Claims Act); *id.* § 3730(b) (qui tam filing under seal; government election to intervene); *id.* § 3730(d) (relator’s share of 15–25% with intervention, 25–30% without); *id.* § 3730(h) (anti-retaliation provision).

²⁶31 U.S.C. §§ 3729–3733 (2018) (False Claims Act); *id.* § 3730(b) (qui tam filing under seal; government election to intervene); *id.* § 3730(d) (relator’s share of 15–25% with intervention, 25–30% without); *id.* § 3730(h) (anti-retaliation provision).

²⁷31 U.S.C. §§ 3729–3733 (2018) (False Claims Act); *id.* § 3730(b) (qui tam filing under seal; government election to intervene); *id.* § 3730(d) (relator’s share of 15–25% with intervention, 25–30% without); *id.* § 3730(h) (anti-retaliation provision).

²⁸Wash. Rev. Code ch. 74.66 (Medicaid Fraud False Claims Act), Washington’s principal state-level false-claims statute, which is narrower in scope than the federal False Claims Act; general legal background, not independently re-verified against current statutory text in this research pass.

²⁹Seattle Weekly, *Concerned About Mail-In Ballots? Here Are King County’s Alternatives* (Sept. 10, 2026), <https://www.seattleweekly.com/2026/09/10/concerned-about-mail-in-ballots-here-are-king-countys-alternatives/> (last visited Sept. 30, 2026) (quoting King County Elections Communications Manager Halei Watkins describing a reported Sept. 4, 2026 federal preliminary injunction against USPS’s rule, and reporting an unidentified whistleblower’s claims about the verification portal’s design). Not cross-checked against the docket’s actual order text in this pass.

Case identity (confirmed)

- **Caption:** *State of California v. United States Postal Service*
- **Court / docket:** U.S. District Court, District of Massachusetts, No. 1:26-cv-13917³⁰
- **Filed:** August 26, 2026
- **Judge:** Indira Talwani (referred to Magistrate Judge M. Page Kelley)³¹
- **Nature of suit (docket code):** “441 Civil Rights: Voting”³²
- **Cause of action (docket code):** “28:2201 Constitutionality of State Statute(s)” (Declaratory Judgment Act vehicle)³³

Parties (confirmed from docket metadata)

Plaintiffs include roughly two dozen states and the District of Columbia — California, **Washington**, Massachusetts, New York, New Jersey, Illinois, Michigan, Minnesota, Colorado, Oregon, Arizona, Nevada, Hawaii, Maryland, Vermont, Rhode Island, Delaware, Connecticut, Maine, New Mexico, Wisconsin — plus the City of Madison, Wisconsin, Travis County, Texas, and the League of United Latin American Citizens.³⁴ Interestingly, some traditionally red states (South Dakota, Indiana, Oklahoma, Missouri, Alabama, Louisiana, Montana, Kansas, South Carolina, Nebraska, North Carolina, Florida) also appear in the party list, which given the docket’s size and an “Order on Motion to Intervene” entry, most likely reflects a mix of plaintiff states and separately-represented intervenors rather than a single unified plaintiff coalition — this distinction was not resolved from the metadata alone and would require reading the actual complaint and intervention motions.³⁵

Named individual/defendant-side parties include USPS itself, and individuals who appear to be current or former USPS Governors/executives: Doug Tulino, David Steiner, Ronald Stroman, Amber McReynolds, Daniel Tangherlini, and Derek Kan.³⁶

Intervenor-type entities appearing in the docket include America First Legal Foundation (listed among the firms/attorneys of record), National Security Leaders for America, Secure Families Initiative, Society for the

³⁰Docket, *California v. U.S. Postal Serv.*, No. 1:26-cv-13917 (D. Mass. filed Aug. 26, 2026) (Talwani, J.), available at <https://www.courtlistener.com/docket/74701505/state-of-california-v-united-states-postal-service/> (last visited Sept. 30, 2026).

³¹Docket, *California v. U.S. Postal Serv.*, No. 1:26-cv-13917 (D. Mass. filed Aug. 26, 2026) (Talwani, J.), available at <https://www.courtlistener.com/docket/74701505/state-of-california-v-united-states-postal-service/> (last visited Sept. 30, 2026).

³²*Id.* (docket reporting nature-of-suit code “441 Civil Rights: Voting” and cause of action “28:2201 Constitutionality of State Statute(s)”); no RICO-specific nature-of-suit code, which would read “470 RICO,” appears on the docket).

³³Docket, *California v. U.S. Postal Serv.*, No. 1:26-cv-13917 (D. Mass. filed Aug. 26, 2026) (Talwani, J.), available at <https://www.courtlistener.com/docket/74701505/state-of-california-v-united-states-postal-service/> (last visited Sept. 30, 2026).

³⁴*Id.* (party list identifying the State of Washington and the State of California as plaintiffs, and Doug Tulino, David Steiner, Ronald Stroman, Amber McReynolds, Daniel Tangherlini, and Derek Kan as named USPS-affiliated defendants).

³⁵*Id.* (party list identifying the State of Washington and the State of California as plaintiffs, and Doug Tulino, David Steiner, Ronald Stroman, Amber McReynolds, Daniel Tangherlini, and Derek Kan as named USPS-affiliated defendants).

³⁶*Id.* (party list identifying the State of Washington and the State of California as plaintiffs, and Doug Tulino, David Steiner, Ronald Stroman, Amber McReynolds, Daniel Tangherlini, and Derek Kan as named USPS-affiliated defendants).

Rule of Law, and the Arizona Students' Association — consistent with a politically contested case attracting outside advocacy-group intervention on one or both sides.³⁷

What the case is about (confirmed from the complaint)

The case challenges **Executive Order No. 14399** (issued March 31, 2026) and the USPS rule implementing it, *Ballot Mail for Federal Elections*, 91 Fed. Reg. 54,966 (Aug. 26, 2026). The rule requires states to enroll every mail voter in a new USPS-run “Federal Ballot Mail Portal,” mandates USPS-approved envelope designs bearing a unique Intelligent Mail barcode (IMb) on both outbound and return ballots, and directs USPS to refuse delivery of noncompliant ballot mail. Plaintiff states allege this unconstitutionally federalizes control over mail voting weeks before the 2026 midterms.³⁸ (Superseding the earlier inference-only description below, which was based on docket metadata alone before the complaint text was retrieved.)

Full complaint now reviewed — seven causes of action, no RICO/qui tam/DNC

The actual 53-page complaint (Document 1, filed 2026-08-26) was retrieved and read in full.³⁹ It pleads exactly **seven causes of action**, all against USPS and the six named Board of Governors officials, **none of them RICO, False Claims Act, or naming the DNC in any capacity**:

1. **Separation of Powers / Elections & Electors Clauses / Commandeering / Ultra Vires** — the Rule usurps States' constitutional authority over election “manner,” commandeers state resources (*Printz v. United States*), and exceeds USPS's Article I, § 8, cl. 7 postal authority.
2. **APA — contrary to statute / arbitrary and capricious** — treating ballot mail as de facto “nonmailable matter” outside the narrow categories Congress defined in 39 U.S.C. §§ 3001–3018; failure to consider reliance interests (*Regents* standard); effective date set without the 30-day notice required by 5 U.S.C. § 553(d).
3. **Ultra vires — unauthorized non-postal service** — creating the mail voter enrollment/monitoring scheme exceeds USPS's 39 U.S.C. § 404(e) authority to provide only services that existed pre-2006 or under a qualifying interagency agreement.

³⁷ *Id.* (party list identifying the State of Washington and the State of California as plaintiffs, and Doug Tulino, David Steiner, Ronald Stroman, Amber McReynolds, Daniel Tangherlini, and Derek Kan as named USPS-affiliated defendants).

³⁸ Complaint, *California v. U.S. Postal Serv.*, No. 1:26-cv-13917 (D. Mass. filed Aug. 26, 2026) (53 pages), available at <https://storage.courtlistener.com/recap/gov.uscourts.mad.305406/gov.uscourts.mad.305406.1.0.pdf> (last visited Sept. 30, 2026). A full-text search of the extracted complaint for “DNC,” “Democratic National Committee,” “RICO,” “racketeer,” “qui tam,” and “False Claims” returned zero matches.

³⁹ Complaint, *California v. U.S. Postal Serv.*, No. 1:26-cv-13917 (D. Mass. filed Aug. 26, 2026) (53 pages), available at <https://storage.courtlistener.com/recap/gov.uscourts.mad.305406/gov.uscourts.mad.305406.1.0.pdf> (last visited Sept. 30, 2026). A full-text search of the extracted complaint for “DNC,” “Democratic National Committee,” “RICO,” “racketeer,” “qui tam,” and “False Claims” returned zero matches.

4. **Ultra vires — failure to seek a Postal Regulatory Commission advisory opinion** under 39 U.S.C. § 3661(b) before a nationwide service change; a PRC complaint was filed June 11, 2026 and never acted on.
5. **Ultra vires — undue/unreasonable discrimination among mail users** under 39 U.S.C. § 403(c) — identical ballots treated differently based on whether a voter appears on USPS’s list.
6. **Voting Rights Act** — 52 U.S.C. §§ 10307(a), 10502 — USPS’s refusal to deliver noncompliant ballots is alleged to deny qualified voters the right to vote “under color of law.”
7. **Privacy Act** — 5 U.S.C. § 552a(e)(1) & (e)(7) — the System of Records Notice’s collection of voter/mail-ballot data is alleged to exceed what is “relevant and necessary” and to improperly record First Amendment activity (choice to register/vote by mail).

Relief sought is purely declaratory/injunctive (vacate the Rule, enjoin enforcement) plus fees/costs under the APA and Declaratory Judgment Act — **no damages, no treble damages, no whistleblower bounty**. This confirms, rather than merely infers, that the case has no RICO or qui tam dimension and does not involve the DNC.⁴⁰

The complaint also reveals this filing sits inside a **larger, pre-existing litigation campaign** over the same executive order: it repeatedly cites *California v. Trump*, No. 1:26-cv-11581 (D. Mass.) and *League of Women Voters of Massachusetts v. Trump*, No. 1:26-cv-11549 (D. Mass.), both of which had already enjoined related USPS rulemaking before this complaint was filed — footnote 26 of the complaint alleges USPS submitted this Rule for public inspection *while already enjoined* from doing so.⁴¹ Anyone researching this matter further should pull those two dockets as well.

Part 4 — Operational/technical claims suited for subject-matter review

Context (clarified by the user): the user supports USPS and the Ballot Mail for Federal Elections rule as an election-security measure, and is **not** adverse to USPS in this matter — he is not a defendant in *California v. USPS* and does not intend to name USPS or its officials as defendants in his own prospective case (see Part 5). The purpose of this Part is therefore to help evaluate — and, if warranted, rebut — the *plaintiff states*’ (i.e.,

⁴⁰Complaint, *California v. U.S. Postal Serv.*, No. 1:26-cv-13917 (D. Mass. filed Aug. 26, 2026) (53 pages), *available at* <https://storage.courtlistener.com/recap/gov.uscourts.mad.305406/gov.uscourts.mad.305406.1.0.pdf> (last visited Sept. 30, 2026). A full-text search of the extracted complaint for “DNC,” “Democratic National Committee,” “RICO,” “racketeer,” “qui tam,” and “False Claims” returned zero matches.

⁴¹Complaint, *California v. U.S. Postal Serv.*, No. 1:26-cv-13917 (D. Mass. filed Aug. 26, 2026) (53 pages), *available at* <https://storage.courtlistener.com/recap/gov.uscourts.mad.305406/gov.uscourts.mad.305406.1.0.pdf> (last visited Sept. 30, 2026). A full-text search of the extracted complaint for “DNC,” “Democratic National Committee,” “RICO,” “racketeer,” “qui tam,” and “False Claims” returned zero matches.

the blue states’) technical/operational claims *against* the rule, using the user’s stated background (Y2K-era IT consulting for the U.S. Postal Inspection Service), not to build a claim against USPS.

The user has indicated relevant background (Y2K-era IT consulting for the U.S. Postal Inspection Service) that may bear on evaluating the *technical and operational* claims in the complaint — as distinct from its legal theories, which are for counsel. The following paragraph-cited claims are the ones most likely to turn on operational/systems facts rather than pure law, listed here for independent evaluation rather than asserted as true or false by this report:

#	Complaint’s claim	Citation
1	The “Federal Ballot Mail Portal” required by the Rule “does not currently exist,” and commenters called rolling out “untested technology” to manage “tens of millions of entries” in a compressed timeframe “fraught with risk.”	¶108
2	State/local election officials — not USPS — are made responsible for generating the unique Intelligent Mail barcode (IMb), with the “Delivery Point Zip Code embedded and a Federal Ballot Mail STID,” for each outbound and return ballot envelope.	¶105, ¶123 (citing 91 Fed. Reg. 54,966, 54,990)
3	USPS’s own stated per-mailpiece verification estimate (“less than a minute per mailpiece,” “no more than a few hours for larger mailings”) is characterized by plaintiffs as implying ~23 million minutes (~43 years) of aggregate processing time for California alone, with election officials required to remain on-site at the USPS counter throughout.	¶134 (citing 91 Fed. Reg. 54,966, 54,981)
4	USPS commits to envelope-design feedback “within two business days” but the complaint	¶134
5	says this doesn’t account for the very significant time and cost to “more than 10,000 election jurisdictions,” each often designing its own envelopes.	¶152 (citing 91 Fed. Reg. 54,980–81)

These are presented as a checklist of *plaintiffs' factual allegations* about USPS system design and capacity — not independently verified against the Federal Register rule text itself in this pass (only the complaint's characterization of it was reviewed). If useful for Mr. Kirk, the next step would be to pull the actual Federal Register rule (91 Fed. Reg. 54,966) and the NPRM (91 Fed. Reg. 32,915) directly and compare their text against the complaint's characterizations side by side.

User's rebuttal theory: the alleged compliance costs (stated directly by the user)

"The DMM changes, associated with the Trump executive order, primarily affect such companies as K&H. The claims by the blue states as to the costs imposed by the USPS changes are BS. The existing DMM has most of these, executed by the mailer (not the state), and saying it will cost any significant costs to comply are the primary misrepresentation in the California v. USPS case. The mailing vendors already do the needed steps, if nothing else, to qualify for discounted mailing rates."

Recorded here verbatim, as the user's own theory of the case — **not independently verified against the DMM text in this pass** (Postal Explorer's DMM pages at pe.usps.com/text/dmm300/705.htm and [708.htm](https://pe.usps.com/text/dmm300/708.htm) did not return machine-readable section text to the tools available this session; only page titles were retrievable). This theory has three separable parts, each of which would need document-level verification before it could be used to rebut the complaint:

1. **Who bears the barcode/generation burden.** The user's claim is that the *mailer* (i.e., the printing/mail-fulfillment vendor, such as K&H Printers) — not the state or county election office — already performs Intelligent Mail barcode (IMb) generation and application as a routine, pre-existing step, because doing so is required to qualify for USPS's existing automation/discounted-rate mail classes (USPS's "Full-Service Intelligent Mail" program, in place since 2013, is publicly known to condition automation discounts on mailer-generated IMb barcodes). If accurate, this would directly undercut Complaint ¶105 and ¶123 (Part 4, item 2 above), which frame IMb/STID generation as a *new* burden imposed on "state/local election officials." **Not yet confirmed:** whether the complaint's specific Federal Ballot Mail STID and "Delivery Point Zip Code" requirements are in fact just an incremental configuration of an existing, already-automated mailer workflow, or whether they require genuinely new steps beyond ordinary Full-Service IMb compliance.
2. **Who the Rule's costs actually fall on.** The user's claim is that the Rule's practical burden lands on vendors like K&H Printers (who already have the necessary systems) rather than on the plaintiff states themselves — which, if true, would be relevant to the plaintiffs' standing/injury theory in *California v.*

USPS, since a cost borne by a private vendor already compliant with existing USPS automation rules is a different injury (and a different plaintiff) than a state-borne cost. This is a legal-standing argument for counsel to evaluate, not a fact this report can resolve.

3. **Characterization of the complaint's cost estimates as "the primary misrepresentation."** This is the user's characterization/opinion about the complaint's litigation strategy, not an independently verified fact. The complaint's own cost estimates (Part 4, item 3: "~23 million minutes (~43 years)" aggregate processing time) are themselves framed around *verification/rejection at the USPS counter*, which is a different operation from *barcode generation by the mailer* — so even if the user's mailer-side point is correct, it does not, by itself, dispose of the complaint's separate counter-verification burden argument. Both threads should be checked against the Federal Register rule text side by side, as recommended above.

Part 5 — User-supplied factual basis (unverified, stated directly by the user)

In response to a request for the underlying injury, the user provided the following, quoted here as close to verbatim as practical so nothing is lost or paraphrased into a different meaning. **None of the specific factual claims below have been independently verified by this research** (no name, date, filing, or document has been supplied yet to check against public records):

"Underlying injury includes: dilution of votes, and against me in particular, attempts to prevent my business, DOGEtech.co, to achieve needed success. I have been working for 2+ years on work including research into FEC violations by democratic candidates."

Breaking this into its three component claims, and flagging the threshold legal-fit question each one raises for counsel (not answered here — these are exactly the kind of judgment calls that belong to Mr. Kirk, not to this report):

1. **Vote dilution (general).** Vote-dilution claims are typically brought as constitutional claims (Fourteenth Amendment equal protection, or the Voting Rights Act — the same theories actually pled in *California v. USPS*, see Part 3) by voters or jurisdictions, not as civil RICO claims. Civil RICO's injury requirement is specifically "business or property" injury (18 U.S.C. § 1964(c)) — courts have generally held that a generalized grievance about the integrity or weight of one's vote, without more, is not a "business or property" injury RICO recognizes. **Question for counsel:** is there a specific, personal, pleadable business-

or-property harm flowing from the alleged vote dilution, distinct from the general public-policy harm already pled by the states in *California v. USPS*?

2. **Alleged interference with DOGEtech.co.** This is the piece most naturally framed as a “business or property” injury under civil RICO — *if* it can be tied to specific predicate acts (e.g., mail fraud, wire fraud, extortion — the defined list in 18 U.S.C. § 1961(1)) committed by an identifiable “enterprise,” and if proximate cause (not merely “but-for” cause) can be shown per *Holmes* and *Anza* (see Part 1). **Clarified by the user:** the defendants are **not** USPS or the USPS Board of Governors officials named in *California v. USPS* — the user has clarified he **supports** USPS and the Ballot Mail for Federal Elections rule discussed in Part 3/Part 4 as an election-security measure, and is not a party adverse to USPS. The user’s stated defendants for his own prospective case are: **(a) blue states, (b) the DNC, and (c) “related ‘compliance’ companies involved in fundraising for democrats.”** This aligns the theory with Part 7 (blue states resisting/being sued over voter rolls; the DNC’s appearance as a party in *United States v. Shirley Weber*) rather than with Part 3/Part 4’s case, which should now be read purely as **background on a case the user is not a party to and does not oppose**, not as a source of defendants. **Still needed, not yet supplied:** which specific blue states, which specific “compliance” companies (a term not yet defined — candidates that would fit this description, not yet confirmed as what the user means, include payment-processing/compliance platforms used by Democratic campaigns such as ActBlue), what DOGEtech.co is/does, what actions each alleged defendant took against it, when, and how those actions connect factually to the alleged predicate acts. No public reporting connecting a business called “DOGEtech.co” to this matter was research pass (a targeted search was not run in this update; can be added on request if a specific incident, date, or counterparty is identified).

Additional defendant category supplied by the user: election-mail / ballot-printing and political direct-mail vendors. The user identified the following as a further set of prospective defendants, sourced from an AI-search-style summary he provided (verified here against each company’s own site or independent reporting where possible):⁴²

⁴²Company websites for K&H Printers, <https://www.khprint.com/election-services/>; Mail King USA, <https://mailkingusa.com/direct-mail-services/seattle-wa/>; and Lithtex Northwest, <https://www.lithtexnw.com/servicecenter/directmail-services.html> (all last visited Sept. 30, 2026) (confirming each as a real, currently operating commercial printing/direct-mail business offering the described service lines). Proforma, Midwest Direct, and Runbeck Election Services were named in the user’s supplied summary but not independently re-verified in this pass. The distinction between official ballot-processing vendors and political-campaign direct-mail vendors, and the statement that King County’s actual ballot distribution is handled directly with USPS rather than through commercial marketing entities, is drawn from the same user-supplied summary, which cited the Washington Secretary of State’s website, <https://www.sos.wa.gov/usps-and-election-mail-resources>, and the Seattle Weekly article, *supra* note 21.

Company	What it is (verified)	Confirmed connection to this matter
K&H Printers (Everett/Fern- dale, WA)	A real commercial printer with a dedicated “election services” business line (ballot printing, database processing, barcode automation), per its own website.	Not independently confirmed beyond its own marketing claims of serving counties across the Western U.S.; no specific contract, county, or incident tying it to DOGEtech.co or to any defendant conduct was supplied or located.
Runbeck Election Services	A real, nationally known ballot-printing/election-mail vendor (independently known from public reporting, not solely the user’s list).	Same as above — named as a general industry participant, not tied to a specific act.
Proforma / Midwest Direct	Listed as national ballot-printing players in the user’s supplied summary.	Not independently verified in this pass.
Mail King USA (Seattle, WA)	A real regional direct-mail marketing/political-mail company, per its own website, serving Seattle/WA political campaigns.	Not independently confirmed beyond its own marketing claims; no specific political client, contract, or incident supplied.
Lithtex Northwest (WA)	A real regional direct-mail printing company, per its own website.	Same as above.

Important caveat directly from the user’s own supplied source: that source itself states that “for official government voting materials, actual ballot distribution and processing in Seattle are managed directly by King County Elections in partnership with the USPS Election Mail network **rather than commercial marketing entities**.”⁴³ In other words, the user’s own source distinguishes *official ballot*

printing/processing (K&H Printers, Runbeck, Proforma/Midwest Direct) from *political campaign* direct mail (Mail King USA, Lithtex Northwest) — two different categories of vendor serving two different customers (county election offices vs. political campaigns/committees). **Still needed, not yet supplied:** which of these companies (if any) the user alleges actually did something wrongful, what that conduct was, when, and its connection to DOGEtech.co or to the RICO “enterprise” theory — being a commercial vendor in this industry is not, by itself, wrongdoing or evidence of an “enterprise” under 18 U.S.C. § 1961(4).

3. **Two years of independent research into FEC violations by Democratic candidates.** This is described as the user’s own investigative work, not itself an injury. Two open legal-fit questions for counsel: (a) FEC (Federal Election Campaign Act, 52 U.S.C. § 30101 et seq.) violations are enforced by the FEC administratively and, for willful/knowing violations, by DOJ criminally (52 U.S.C. § 30109) — they are not, generally, a False Claims Act (*qui tam*) predicate, since *qui tam* requires a false claim *for payment from the government*, which campaign-finance reporting violations typically are not; (b) if the theory is instead that the user was *retaliated against* (e.g., via harm to DOGEtech.co) *because of* this research, that reframes the claim as a retaliation/interference theory requiring its own proximate-cause and “enterprise” showing under RICO — a materially different and more demanding theory than a *qui tam* claim, and one that would need its own specific facts (who knew about the research, what they did in response, when).

Net effect: the user has now supplied a *subject* (DOGEtech.co) and a *theme* (vote dilution + FEC research), but not yet the specific facts — who, what, when, and a traceable causal chain — that civil RICO pleading requires. This section records the user’s statement for the record and for Mr. Kirk’s direct review; it does not attempt to independently corroborate it, and it should not be read as this report endorsing any of the three theories above as legally viable.

Video evidence supplied by the user

The user identified the following as evidence, with “other videos” indicated but not yet individually supplied:

⁴³Company websites for K&H Printers, <https://www.khprint.com/election-services/>; Mail King USA, <https://mailkingusa.com/direct-mail-services/seattle-wa/>; and Lithtex Northwest, <https://www.lithtexnw.com/servicecenter/directmail-services.html> (all last visited Sept. 30, 2026) (confirming each as a real, currently operating commercial printing/direct-mail business offering the described service lines). Proforma, Midwest Direct, and Runbeck Election Services were named in the user’s supplied summary but not independently re-verified in this pass. The distinction between official ballot-processing vendors and political-campaign direct-mail vendors, and the statement that King County’s actual ballot distribution is handled directly with USPS rather than through commercial marketing entities, is drawn from the same user-supplied summary, which cited the Washington Secretary of State’s website, <https://www.sos.wa.gov/usps-and-election-mail-resources>, and the Seattle Weekly article, *supra* note 21.

#	URL	Confirmed metadata	What is / is not confirmed
1	https://www.youtube.com/watch?v=S1TR-rqMEwM	Title: “Press conference with Gov. Bob Ferguson and Attorney General Nick Brown, Jan. 26, 2026.” Uploaded by channel @WashingtonAGO — i.e., the Washington State Attorney General’s Office’s own official YouTube channel . ⁴⁴	Confirmed: this is an authentic, official recording (not a third-party clip) of a joint press conference by Washington’s Governor and Attorney General — i.e., squarely “Washington state executives,” directly relevant to the still-open thread in Part 3a/Unverified Items below. Not confirmed: this research tool cannot transcribe or watch video/audio content, so no claim about what was actually said in the press conference is confirmed here — only the fact that it exists, its date, its speakers, and its official source.

To make this usable for a pleading or for Mr. Kirk’s review, the specific claim(s) being relied on from this video still need to be supplied — e.g., a timestamp and a quote or paraphrase of the specific

⁴⁴Washington State Att’y Gen.’s Office, *Press Conference with Gov. Bob Ferguson and Attorney General Nick Brown* (YouTube Jan. 26, 2026), <https://www.youtube.com/watch?v=S1TR-rqMEwM> (last visited Sept. 30, 2026). Publication metadata retrieved via YouTube’s oEmbed endpoint confirms the video was published by the Washington Attorney General’s own channel (@WashingtonAGO); the video’s audio/visual content was not transcribed or reviewed in this pass, and only title, channel, and publication metadata are confirmed.

statement(s) by Gov. Ferguson or AG Brown that the user contends are evidence of the RCW 42.52 violation, vote-dilution theory, or DOGEtech.co interference discussed above. Once supplied, this report can be updated to quote the specific statement and assess it against the RCW 42.52 / RICO framework in Parts 1 and 6. The same applies to the “other videos” referenced but not yet linked.

Part 3a — The DNC’s corporate name, and why it matters here

The Democratic National Committee’s day-to-day legal and financial affairs are conducted under a formally incorporated entity, historically named “**DNC Services Corporation**” (sometimes styled “DNC Services Corporation/Democratic National Committee”). This is not a fringe or obscure detail — it is the named defendant/party in numerous federal lawsuits over multiple decades, including 2016-primary-era litigation over DNC conduct during the Democratic presidential primary (*Wilson v. DNC Services Corporation*, D.D.C. No. 1:17-cv-00730) and earlier campaign-finance matters.⁴⁵

Two things follow for this research question:

1. If a current racketeering complaint names the DNC, the caption would most likely read “DNC Services Corporation,” not “DNC Services, Inc.” — worth checking if you go back to the source of your recollection.
 2. Despite confirming the DNC’s correct corporate name, **no public record was found linking DNC Services Corporation to a RICO complaint involving Washington state executives**, whether connected to *California v. USPS* or as a standalone matter.⁴⁶ If you have a docket number, court name, or filing date for the complaint you have in mind, that would let this report be corrected with a direct citation rather than a “not found.”
-

Part 6 — Washington’s state ethics law: RCW ch. 42.52 (“Ethics in Public Service”)

The user noted that Washington statutory law restricts public officials from using their office for personal gain, including partisan advantage. This is confirmed, and comes from a specific statutory chapter, quoted

⁴⁵ See, e.g., *Wilson v. DNC Servs. Corp.*, No. 1:17-cv-00730 (D.D.C.), available at <https://www.courtlistener.com/opinion/4665158/wilson-v-dnc-services-corporation/> (last visited Sept. 30, 2026) (one of approximately twenty reported decisions confirming “DNC Services Corporation” as the Democratic National Committee’s long-used formal corporate name).

⁴⁶ Searches of CourtListener’s opinion database for “DNC Services, Inc.,” “DNC Services Corporation,” and “DNC Services Corporation” combined with “Washington” and “racketeering” returned no case tying the DNC to a Washington-state racketeering complaint; the sole racketeering-adjacent result was the unrelated campaign-finance action *Meng v. Schwartz*, 305 F. Supp. 2d 49 (D.D.C. 2004). Contemporaneous news searches for “DNC Services” RICO Washington and “Democratic National Committee” racketeering lawsuit 2026 likewise returned no matching results.

here directly from the official Washington State Legislature site rather than summarized from memory:⁴⁷

- **RCW 42.52.020 — Conflicts of interest (general).** “No state officer or state employee may have an interest, financial or otherwise, direct or indirect, or engage in a business or transaction or professional activity, or incur an obligation of any nature, that is in conflict with the proper discharge of the state officer’s or state employee’s official duties.”
- **RCW 42.52.070 — Special privileges.** “Except as required to perform duties within the scope of employment, no state officer or state employee may use his or her position to secure special privileges or exemptions for himself or herself, or his or her spouse, child, parents, or other persons.” This is the closest statutory match to “personal gain” in the narrow sense of self-dealing.
- **RCW 42.52.180 — Use of public facilities for political campaigns.** “No state officer or state employee may use or authorize the use of facilities of an agency, directly or indirectly, for the purpose of assisting a campaign for election of a person to an office or for the promotion of or opposition to a ballot proposition.” “Facilities of an agency” is defined broadly (stationery, postage, machines and equipment, state employees during working hours, vehicles, office space, publications, clientele lists). This is the statute most directly on point for “partisan advantage.” It carries several enumerated exceptions (subsection (2)) for ordinary official communications, open-meeting votes, legislative websites, and de minimis incidental use — the exceptions matter, since a large share of ethics-complaint litigation turns on whether particular conduct falls inside or outside them.

Enforcement mechanism (important limitation for any countersuit theory). This chapter is enforced administratively, not through a private civil damages action. RCW 42.52.360 assigns enforcement to the **Executive Ethics Board** (for executive-branch officers/employees) and the equivalent Legislative Ethics Board / Commission on Judicial Conduct for their respective branches; the Executive Ethics Board “investigate[s], hear[s], and determine[s] complaints by any person or on its own motion” and may “impose sanctions including reprimands and monetary penalties.”⁴⁸ **Any Washington citizen may file a complaint with the relevant ethics board**, but this chapter, standing alone, does not create a private right of action for a citizen

⁴⁷Wash. Rev. Code ch. 42.52 (Ethics in Public Service), available at <https://app.leg.wa.gov/rcw/default.aspx?cite=42.52> (last visited Sept. 30, 2026); *id.* § 42.52.010 (definitions, including “state officer” and “state employee”); *id.* § 42.52.020 (conflicts of interest); *id.* § 42.52.070 (special privileges); *id.* § 42.52.180 (use of public facilities for political campaigns); *id.* § 42.52.360 (enforcement by the Executive Ethics Board, including complaints “by any person”).

⁴⁸Wash. Rev. Code ch. 42.52 (Ethics in Public Service), available at <https://app.leg.wa.gov/rcw/default.aspx?cite=42.52> (last visited Sept. 30, 2026); *id.* § 42.52.010 (definitions, including “state officer” and “state employee”); *id.* § 42.52.020 (conflicts of interest); *id.* § 42.52.070 (special privileges); *id.* § 42.52.180 (use of public facilities for political campaigns); *id.* § 42.52.360 (enforcement by the Executive Ethics Board, including complaints “by any person”).

to sue a state officer directly for damages — it is a complaint-and-administrative-sanction regime, not a RICO-style treble-damages tort.

Threshold applicability questions for counsel, given the facts discussed elsewhere in this report:

1. **Coverage.** RCW 42.52 applies to Washington *state* officers and employees (see the “state officer”/“state employee” definitions in RCW 42.52.010). It does not, by its terms, reach *federal* officials — so it would not apply directly to the named USPS Governors/executives in *California v. USPS* (Part 3), who are federal appointees, not Washington state officers. It would potentially reach Washington state-government figures specifically (e.g., a Washington state executive-branch official, if one is alleged to have used state office resources for partisan advantage) — which is the same “Washington state executives” thread flagged as unresolved elsewhere in this report (see Part 3a and “Unverified items” below).
2. **Relationship to a civil RICO/qui tam theory.** A RCW 42.52 violation is not, by itself, one of civil RICO’s listed predicate acts (18 U.S.C. § 1961(1) — see Part 1), nor is it a False Claims Act violation (Part 2). It could conceivably supply *supporting* factual context (e.g., evidence of motive or an improper “enterprise” relationship) if the same underlying conduct also independently satisfies a RICO predicate (such as extortion or bribery under generically-defined state-law crimes RICO incorporates), but an ethics-code violation alone is a distinct, administrative claim with its own forum (the ethics boards) and would not itself be pled as a RICO count.
3. **Still needed, not yet supplied:** which specific Washington state officer(s) or employee(s), which specific facility/resource use, and when — none of which has been identified yet in this research.

Part 7 — DOJ’s 2025–2026 campaign to obtain state voter rolls (connects to Washington, and to the DNC)

This section responds directly to the user’s request to research “letters sent to blue state election officials by the US attorney general demanding access to elections records.” This is confirmed, well-documented, and directly connects two previously “unverified” threads in this report: Washington State’s involvement (Part 3a, Unverified Items) and a DNC connection (also Part 3a) — though not in the way originally guessed (see below).

What happened (confirmed from primary sources)

- Beginning around **May–June 2025**, DOJ’s Civil Rights Division (under then-acting voting-section chief Maureen Riordan) sent letters to numerous states — starting with Colorado, then Minnesota, Nevada,

Pennsylvania, New Hampshire, and others — demanding full state voter registration lists (including, in some cases, partial/full Social Security numbers, driver’s license numbers, and dates of birth), citing the Help America Vote Act (HAVA) and National Voter Registration Act (NVRA).⁴⁹

- By **late January 2026**, DOJ had escalated from letters to **lawsuits**: it sued **24 states plus D.C.** for refusing to produce full voter registration lists, including **Washington**, alongside California, Colorado, Oregon, Minnesota, New York, Massachusetts, and 17 others.⁵⁰ Separately, **at least 8 states** (Arkansas, Indiana, Kansas, Louisiana, Mississippi, Tennessee, Texas, Wyoming) had complied and handed over complete voter lists.⁵¹
- **Directly on point for the user’s question:** on **January 24, 2026**, Attorney General **Pamela Bondi** **personally sent a letter to Minnesota Governor Tim Walz** making three requests she said would “restore the rule of law, support ICE officers, and bring an end to the chaos in Minnesota” — with the third request being DOJ access to Minnesota’s voter rolls.⁵² Minnesota Secretary of State Steve Simon publicly refused and characterized the letter as conditioning “our state’s peace and security” (i.e., an end to a contemporaneous federal immigration- enforcement deployment in Minnesota) on handing over voter data, calling it “an apparent ransom.”⁵³ **This is Secretary Simon’s characterization of the letter, not an**

⁴⁹Democracy Docket, *Explainer: Can DOJ Access States’ Voter Data? It’s Complicated*, <https://www.democracydocket.com/analysis/explainer-can-doj-access-states-voter-data-its-complicated/> (last visited Sept. 30, 2026) (describing U.S. Department of Justice Civil Rights Division letters beginning approximately May 2025 to Colorado, Minnesota, Nevada, Pennsylvania, New Hampshire, and other states demanding state voter-registration lists under the Help America Vote Act and the National Voter Registration Act, and quoting election-law scholars’ and state officials’ Privacy Act and statutory-authority objections).

⁵⁰Letter from Sens. Alex Padilla, Richard J. Durbin, and 22 other U.S. Senators, to Att’y Gen. Pamela Bondi (Jan. 29, 2026), *available at* <https://www.padilla.senate.gov/wp-content/uploads/26.01.29-Follow-Up-Letter-to-DOJ-re-Voter-Rolls-Requests-FINAL.pdf>, and saved locally at [sources/senate-letter-2026-01-29-doj-voter-rolls.pdf](#) (listing, per the Brennan Center’s tracker, twenty-four states and the District of Columbia sued by the Department of Justice as of Jan. 28, 2026 — Arizona, California, Colorado, Connecticut, Delaware, Georgia, Hawai’i, Illinois, Maine, Maryland, Massachusetts, Michigan, Minnesota, Nevada, New Hampshire, New Mexico, New York, Oregon, Pennsylvania, Rhode Island, Vermont, Virginia, Wisconsin, and **Washington** — and identifying Arkansas, Indiana, Kansas, Louisiana, Mississippi, Tennessee, Texas, and Wyoming as having handed over complete voter lists as of that date).

⁵¹Letter from Sens. Alex Padilla, Richard J. Durbin, and 22 other U.S. Senators, to Att’y Gen. Pamela Bondi (Jan. 29, 2026), *available at* <https://www.padilla.senate.gov/wp-content/uploads/26.01.29-Follow-Up-Letter-to-DOJ-re-Voter-Rolls-Requests-FINAL.pdf>, and saved locally at [sources/senate-letter-2026-01-29-doj-voter-rolls.pdf](#) (listing, per the Brennan Center’s tracker, twenty-four states and the District of Columbia sued by the Department of Justice as of Jan. 28, 2026 — Arizona, California, Colorado, Connecticut, Delaware, Georgia, Hawai’i, Illinois, Maine, Maryland, Massachusetts, Michigan, Minnesota, Nevada, New Hampshire, New Mexico, New York, Oregon, Pennsylvania, Rhode Island, Vermont, Virginia, Wisconsin, and **Washington** — and identifying Arkansas, Indiana, Kansas, Louisiana, Mississippi, Tennessee, Texas, and Wyoming as having handed over complete voter lists as of that date).

⁵²Press Release, Office of the Minn. Sec’y of State, *Statement from Secretary Simon* (Jan. 25, 2026), <https://sos.mn.gov/about-the-office/news-room/statement-from-secretary-simon/> (last visited Sept. 30, 2026) (describing and characterizing as an “apparent ransom” Att’y Gen. Bondi’s Jan. 24, 2026 letter to Gov. Tim Walz, *available at* <https://sos.mn.gov/media/wihf4a05/ag-bondi-gov-walz-letter-012426.pdf> and saved locally at [sources/bondi-letter-2026-01-24-walz-voter-rolls.pdf](#) (an image-based PDF with no extractable text layer in the copy retrieved)); *accord* Senate letter, *supra* note 18 (independently corroborating the same letter, date, and characterization).

⁵³Press Release, Office of the Minn. Sec’y of State, *Statement from Secretary Simon* (Jan. 25, 2026), <https://sos.mn.gov/about-the-office/news-room/statement-from-secretary-simon/> (last visited Sept. 30, 2026) (describing and characterizing as an “apparent

adjudicated fact — the underlying PDF of the Bondi-to-Walz letter itself is saved locally at `sources/bondi-letter-2026-01-24-walz-voter-rolls.pdf` for direct review (it is an image/scan without a text layer in the copy retrieved, so it could not be full-text-searched in this pass).

- **Courts have repeatedly rejected DOJ’s legal theory.** Federal judges in Oregon (Jan. 14, 2026), California (Jan. 15, 2026), and Georgia (Jan. 23, 2026, dismissed on venue grounds) all rejected DOJ’s voter-roll lawsuits as of the most recent letter reviewed.⁵⁴ The California ruling, *United States v. Shirley Weber*, No. 2:25-cv-09149 (C.D. Cal., Judge David O. Carter), confirmed via CourtListener docket metadata (filed 2025-09-25, terminated 2026-01-15, cause “42:1981 Civil Rights,” DOJ as plaintiff against California Secretary of State Shirley Weber and the State of California) — the court reportedly found that DOJ’s stated purpose (“voter roll maintenance enforcement and compliance”) was contradicted by statements made elsewhere by DOJ officials.⁵⁵
- **The DNC connection, found here rather than in the USPS case:** the *Shirley Weber* docket’s party list includes the **Democratic National Committee**, alongside the ACLU, NAACP, League of Women Voters of California, and America First Legal (the same advocacy group that also appeared in the *California v. USPS* docket, Part 3).⁵⁶ This is the first concrete court record located in this research connecting the DNC to a lawsuit involving DOJ/state-executive conduct over voter data — but it is a **Civil Rights Act case, not a RICO or qui tam case**, and the DNC’s specific role (intervenor, amicus, or party-in-interest) was not determined from docket metadata alone; the full docket would need to be pulled to confirm.

ransom” Att’y Gen. Bondi’s Jan. 24, 2026 letter to Gov. Tim Walz, *available at* <https://sos.mn.gov/media/wihf4a05/ag-bondi-gov-walz-letter-012426.pdf> and saved locally at `sources/bondi-letter-2026-01-24-walz-voter-rolls.pdf` (an image-based PDF with no extractable text layer in the copy retrieved)); *accord* Senate letter, *supra* note 18 (independently corroborating the same letter, date, and characterization).

⁵⁴Press Release, Office of the Minn. Sec’y of State, *Statement from Secretary Simon* (Jan. 25, 2026), <https://sos.mn.gov/about-the-office/news-room/statement-from-secretary-simon/> (last visited Sept. 30, 2026) (describing and characterizing as an “apparent ransom” Att’y Gen. Bondi’s Jan. 24, 2026 letter to Gov. Tim Walz, *available at* <https://sos.mn.gov/media/wihf4a05/ag-bondi-gov-walz-letter-012426.pdf> and saved locally at `sources/bondi-letter-2026-01-24-walz-voter-rolls.pdf` (an image-based PDF with no extractable text layer in the copy retrieved)); *accord* Senate letter, *supra* note 18 (independently corroborating the same letter, date, and characterization).

⁵⁵Docket, *United States v. Weber*, No. 2:25-cv-09149 (C.D. Cal. filed Sept. 25, 2025, terminated Jan. 15, 2026) (Carter, J.) (cause of action “42:1981 Civil Rights”; jurisdiction type “U.S. Government Plaintiff”; parties including Shirley Weber, the State of California, Nevada and Maryland as amici, the American Civil Liberties Union, the NAACP, the League of Women Voters of California, America First Legal, and the **Democratic National Committee**). The characterization of the court’s reasoning (“voter roll maintenance enforcement and compliance,” contradicted by DOJ officials’ other statements) is drawn from the Senate letter, *supra* note 18, quoting Order Granting Def.’s Mot. to Dismiss at 16, 19; the underlying order was not independently retrieved in this pass.

⁵⁶Docket, *United States v. Weber*, No. 2:25-cv-09149 (C.D. Cal. filed Sept. 25, 2025, terminated Jan. 15, 2026) (Carter, J.) (cause of action “42:1981 Civil Rights”; jurisdiction type “U.S. Government Plaintiff”; parties including Shirley Weber, the State of California, Nevada and Maryland as amici, the American Civil Liberties Union, the NAACP, the League of Women Voters of California, America First Legal, and the **Democratic National Committee**). The characterization of the court’s reasoning (“voter roll maintenance enforcement and compliance,” contradicted by DOJ officials’ other statements) is drawn from the Senate letter, *supra* note 18, quoting Order Granting Def.’s Mot. to Dismiss at 16, 19; the underlying order was not independently retrieved in this pass.

Why this may matter for a RICO/ethics theory (flagged for counsel, not concluded here)

- If the characterization of the Bondi-to-Walz letter as conditioning an end to a federal law-enforcement deployment on a state's surrender of private citizen data is accurate, that fact pattern — an official using the power of federal office to extract a concession — is the kind of conduct sometimes charged as **extortion under color of official right** (Hobbs Act, 18 U.S.C. § 1951), one of civil RICO's enumerated predicate acts (Part 1). This is **speculative and unconfirmed** — Secretary Simon's press release is an advocacy statement by an opposing political official, not a judicial finding, and the letter's actual text has not been independently reviewed in this pass (see the image-PDF caveat above).
- This also intersects with Part 6 (RCW ch. 42.52): if any **Washington** state officer or employee's use of office resources in responding to or resisting this DOJ campaign is alleged to have crossed into "special privileges" or partisan-campaign use under RCW 42.52.070/.180, that would be a distinct, separately-pleadable Washington-state-law theory — but no such specific Washington conduct has been identified yet; only Washington's inclusion among the 24 states DOJ sued has been confirmed.
- **Washington's own response** has not yet been retrieved in this pass (the sources above document Minnesota's and California's responses in detail; Washington is named as one of the 24 sued states but its specific pleadings/public statements were not separately pulled). This, and the full *Shirley Weber* docket/DNC's specific role in it, are the natural next steps if this thread is to be developed further.
- **Timing note:** the video evidence identified by the user in Part 5 (<https://www.youtube.com/watch?v=S1TR-rqMEwM>, WA AG's office press conference with Gov. Ferguson and AG Brown) is dated **January 26, 2026** — two days after the Bondi-to-Walz letter (Jan. 24) and three days after the Georgia venue dismissal (Jan. 23), squarely inside this same national controversy's timeline. This is a plausible, but **not yet confirmed**, reason the video may be relevant: it may well be Washington officials' own public response to this same DOJ voter-roll campaign. Confirming this still requires the video's actual content (a transcript or timestamp/quote), which has not been obtained (see Part 5).

Unverified items — do not treat as fact

1. **"DNC Services, Inc." / DNC Services Corporation tied to a RICO complaint** — no matches connecting the DNC (under either the user's "DNC Services, Inc." phrasing or the DNC's actual corporate name, "DNC Services Corporation") to a racketeering complaint involving Washington state executives, in either CourtListener's RECAP/opinion full-text search or Google News.⁵⁷ Possible explanations, none confirmed:

- It may be a filing in a Washington state trial court (not indexed by CourtListener/PACER, which primarily cover federal courts).
 - It may be very recent (published after this research pass, or not yet picked up by Google News' index).
 - The DNC's name/role may have been recalled imprecisely relative to the actual complaint (e.g., a state party committee, a related PAC, or a specific individual rather than the national DNC entity).
2. **"Washington state executives"** as RICO defendants — not confirmed independently of the USPS case's Washington AG involvement as a *plaintiff* (not defendant) in *California v. USPS*. If the user meant Washington state executive-branch officials as **defendants** in a *separate* racketeering complaint (possibly naming the DNC as a co-defendant), that complaint was not located.
 3. **Whether the *California v. USPS* case includes any RICO count, or names the DNC as a party — resolved:** it does not. The full complaint was read in this pass; it pleads seven non-RICO causes of action and does not mention the DNC, RICO, qui tam, or the False Claims Act anywhere in its 53 pages.⁵⁸

Recommended next steps

1. Search the **Washington State Courts case index** (not covered by CourtListener) and Washington-specific news outlets for a RICO complaint naming the DNC and Washington state executive-branch officials, since state-level filings are outside the national tools used in this pass — this is now the main open thread, since *California v. USPS* itself has been ruled out as the source of any RICO/DNC connection.
2. If a specific complaint/case number for the DNC-related RICO claim can be supplied by the user, re-run a targeted CourtListener docket lookup by case number rather than by name search.
3. If the goal is evaluating *California v. USPS* on the merits (per the user's stated USPS Inspection Service background), pull the companion dockets *California v. Trump* (1:26-cv-11581, D. Mass.) and *League of Women Voters of Massachusetts v. Trump* (1:26-cv-11549, D. Mass.), both cited repeatedly in this complaint as having already enjoined related USPS rulemaking, plus the Federal Register rule itself (91 Fed. Reg. 54,966) and NPRM (91 Fed. Reg. 32,915), to verify the complaint's characterizations against the primary sources.

Footnotes

⁵⁷ Searches of CourtListener's opinion database for "DNC Services, Inc," "DNC Services Corporation," and "DNC Services Corporation" combined with "Washington" and "racketeering" returned no case tying the DNC to a Washington-state racketeering complaint; the sole racketeering-adjacent result was the unrelated campaign-finance action *Meng v. Schwartz*, 305 F. Supp. 2d 49 (D.D.C. 2004). Contemporaneous news searches for "DNC Services" RICO Washington and "Democratic National Committee" racketeering lawsuit 2026 likewise returned no matching results.

⁵⁸ Complaint, *California v. U.S. Postal Serv.*, No. 1:26-cv-13917 (D. Mass. filed Aug. 26, 2026) (53 pages), available at <https://storage.courtlistener.com/recap/gov.uscourts.mad.305406/gov.uscourts.mad.305406.1.0.pdf> (last visited Sept. 30, 2026). A full-text search of the extracted complaint for "DNC," "Democratic National Committee," "RICO," "racketeer," "qui tam," and "False Claims" returned zero matches.